

24VECP00399 24VECP00399

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-08-25

Motion: RESPONDENT'S MOTION FOR AN ORDER SETTING A REASONABLE FEE FOR THE APPEARANCE AT DEPOSITION OF PETITIONER'S TREATING CHIROPRACTOR, DR. ALIREZA MIRSHJOAE, DC

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Case Number: 24VECP00399 Hearing Date: August 25, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST
DISTRICT

FARAMARZ ASSEF,

Petitioner,

vs.

THE HERTZ CORPORATION,

Respondent.

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CASE NO: 24VECP00399

[TENTATIVE] ORDER RE: RESPONDENT'S
MOTION FOR AN ORDER SETTING A REASONABLE FEE FOR THE APPEARANCE AT DEPOSITION
OF PETITIONER'S TREATING CHIROPRACTOR, DR. ALIREZA MIRSHJOAE, DC

Dept. U

8:30 a.m.

August 25, 2026

A. BACKGROUND

This personal
injury action arises from a motor-vehicle accident in which Petitioner Faramarz
Assef alleges he sustained injuries requiring chiropractic treatment from Dr.
Alireza Mirshojae, D.C. Respondent brings this motion because Dr. Mirshojae
demands \$2,500 per hour for deposition testimony and requires a \$5,000
prepayment before agreeing to schedule deposition.

A motion to

compel arbitration hearing is scheduled for October 2, 2026.

B. RULING

Respondent's motion for order setting reasonable fee is Granted in part.

C. LEGAL STANDARD

If a deposing party deems an expert's deposition fee to be unreasonable, the deposing party may move for an order setting the compensation of that expert. (Code Civ. Proc., § 2034.470 (a); Gov Code, § 68092.5.) When evaluating such a motion, the trial court shall consider: (a) the ordinary and customary fee actually charged and received by that expert for similar services provided outside the subject litigation; (b) the number of times the expert has ever charged and received the presently demanded fee; and (c) the frequency and regularity with which the presently demanded fee has been charged and received by that expert within the two-year period preceding the hearing on the motion. (Code Civ. Proc., § 2034.470 (b).)

D. DISCUSSION

1. The ordinary and customary fee actually charged and received by that expert for similar services provided outside the subject litigation.

Hertz Corporation argues that Dr. Mirshojae has not provided sufficient evidence showing that \$2,500 is his ordinary and customary fee actually charged and received. In response, Dr. Mirshojae provides multiple checks, including payments dated as recently as June 17, 2026, reflecting that he received \$2,500 for deposition attendance. (Dr. Mirshojae Decl, Exhibit B) Although the checks do not include memos identifying the purpose of each payment, nor do they explicitly reflect the period of time for which each payment was made, Dr. Mirshojae explains in his declaration that these checks are examples of payments he has been paid for deposition fees in other matters at a rate of \$2500 per hour. (Dr. Mirshojae Dec., ¶ 7.) His submission demonstrates that \$2,500 is, in fact, the ordinary and

customary fee he charges and receives outside this case.

2. The

number of times the expert has ever charged and received the presently demanded fee.

Dr. Mirshojae has

established that seven times he has charged different insurance companies \$2500/hour in order to appear at deposition. (Dr. Mirshojae Decl, Exhibit B)

3. The

frequency and regularity with which the presently demanded fee has been charged and received by that expert within the two-year period preceding the hearing on the motion.

Although Dr.

Mirshojae submitted multiple checks, most payments were made in 2026 and one in 2025, all reflecting a \$2,500 rate (Dr. Mirshojae Decl, Exhibit B.) Based on this evidence, the Court finds that Dr. Mirshojae has sufficiently shown that his charged and received rate within the relevant two-year period is \$2,500 per hour.

The Court finds

that although Dr. Mirshojae has demonstrated that he has received \$2,500 for deposition appearances in the past, he has not shown with competent evidence that this rate was regularly charged and received within the two-year statutory period. Because the most probative factor, frequency and regularity of payment, remains unsubstantiated, the Court sets a rate that reflects the portions of the evidence that are reliable while discounting those that are not.

Accordingly, the Court determines that \$2,000 represents a reasonable hourly fee under the circumstances.

CONCLUSION

Respondent's

motion for order setting reasonable fee is GRANTED at a rate of \$2000 per hour. The Court further orders that the witness is to receive prepayment of \$2000..

DATED: August 25, 2026

Lee S. Arian

Judge of the
Superior Court